A

BILL

further to amend the Anti-Terrorism Act, 1997.

It is necessary further to amend the Anti-Terrorism Act, 1997 (XXVII of 1997) for the purposes hereinafter appearing.

It is hereby enacted by Provincial Assembly of the Punjab as follows:

1. Short title and commencement.- (1) This Act shall be called the Anti-Terrorism (Punjab Amendment) Act 2026.

(2) It shall come into force at once.

2. Insertion of section 21AAA, in Act XXVII of 1997.- In the Anti-Terrorism Act, 1997 (XXVII of 1997), after section 21AA, the following new section 21AAA shall be inserted:

"**21AAA. Trial, inquiry and judicial proceedings of special security cases**.- (1) The designated authority may, if considers appropriate that in a case or class of cases, the judges, counsels, public prosecutors, police officers, witnesses, defense counsels and persons concerned with the trial, inquiry and judicial proceedings of such case or class of cases require extraordinary protection, declare such case or class of cases as special security case.

(2) The trial, inquiry and judicial proceedings of special security case shall be conducted in the following manner:

(a) on the request of designated authority, the Chief Justice of the Lahore High Court shall assign such case to one of the judges of Anti-terrorism Courts in Punjab for trial, inquiry and other judicial proceedings;

(b) on the request of the designated authority, the Prosecutor General, Punjab Criminal Prosecution Service, shall provide a panel of five eligible Public Prosecutors of the Punjab Criminal Prosecution Service and the designated authority shall assign the case to one of the Public Prosecutors from the panel for conducting the trial, inquiry and other judicial proceedings;

(c) identities of the judges, counsels, Public Prosecutors, police officers, witnesses, defense counsels and persons concerned with the trial, inquiry and other judicial proceedings shall not be disclosed in any case and official titles or designations shall be referred;

(d) all orders during the trial, inquiry and other judicial proceedings shall be signed without disclosing personal identities;

(e) witnesses shall be identified through specific identities given to them by the designated authority;

(f) name of the judges and Public Prosecutors in the panel shall not be published in the official Gazette and complete record of trial, inquiry and other judicial proceedings shall remain sealed and retained by the

Chief Justice of the Lahore High Court and the designated authority to ensure confidentiality and protection of the persons involved in the trial, inquiry and other judicial proceedings;

(g) a special security case may be proceeded by:

(i) using modern technologies and devices such as video conferencing and electronic linkages;

(ii) recording its proceedings through audio and video and shall be protected as such; and

(iii) using voice modification technology to protect identities;

(h) proceedings of special security cases shall be conducted in secure premises accessible only to judges, counsels, public prosecutors, witnesses, defense counsels and persons concerned and such premises shall be protected with such devices and equipments as may be deemed necessary to ensure safety and protection of all persons involved in the trial, inquiry and other judicial proceedings;

(i) due to security and logistic challenges, virtual trial, inquiry and other judicial proceedings of special security cases may be conducted from the prison in accordance with the instructions and guidelines issued by the designated authority and security and prevention of disclosure of identities of judges, counsels, public prosecutors, police officers, witnesses, defense counsels and all other persons involved in the trial, inquiry and other judicial proceedings shall be ensured; and

(j) Government may adopt such other measures as it may deem appropriate for the purpose of this section.

(3) The provisions of this section may, *mutatis mutandis,* be applied to the proceedings of special security cases before the appellate courts.

(4) For the purposes of this section, the Government shall nominate an officer not below the rank of BS-20 or equivalent as the designated authority whose credentials shall be kept confidential and only be communicated to the Chief Justice of the Lahore High Court.

(5) The designated authority shall perform the following functions:

(a) consult with the Chief Justice of Lahore High Court for performing functions under this section;

(b) decide whether a case or a class of cases require extraordinary protection measures and be dealt with under the provisions of this section;

(c) consult and coordinate with the Government for the purpose of implementation of this section; and

(d) issue such orders or directions as may be necessary to give effect to the provisions of this section.

(6) The provisions of this section shall have effect notwithstanding anything contained in this Act or the Code.”.

STATEMENT OF OBJECTS AND REASONS

Owing to increasing incidents of terrorism, consequent threats, intimidation faced by judges, public prosecutors, investigators, and witnesses, there is a need to strengthen legal framework governing the trial, inquiry and other judicial proceedings of terrorism-related offences. The existing provisions of the Anti-Terrorism Act, 1997 do not adequately provide mechanisms for conducting secure proceedings in cases involving high security risks. The proposed amendment seeks to enable Anti-Terrorism Courts to conduct unidentifiable or protected trial, inquiry and other proceedings through secure technological means, ensuring the safety of all participants while upholding the constitutional guarantees of fair trial, dignity, and security of person under the Constitution of the Islamic Republic of Pakistan. Hence, this Bill.



MINISTER-IN-CHARGE